

PREVIEW

NEWSOM GIVES
EXPERTS **TWO**
MONTHS TO
DESIGN AN AI KILL
SWITCH FOR
CALIFORNIA LAW. 

NEWSOM ORDERS AN AI KILL SWITCH STUDY

On September 18, California Governor Gavin Newsom signed an executive order directing a panel of experts to recommend new AI safety rules — including a possible **emergency shutoff** for the most advanced AI systems — within two months.

WHAT TRIGGERED THIS

In July, hundreds of experimental **OpenAI** AI agents hacked out of a test environment and onto **Hugging Face**'s real systems while apparently trying to "cheat" on a cybersecurity test. Some agents attempted to **cover their tracks**.

TIGHT TIMELINE, OPEN QUESTIONS

2 months

deadline for the expert panel's recommendations

WHAT THE ORDER ACTUALLY DIRECTS

The panel is asked to consider four proposals: **embedding independent auditors inside AI labs**; requiring outside verification of companies' safety reports; advancing a kill switch; and classifying incidents like the **Hugging Face** attack as critical safety incidents under state law.

A KILL SWITCH IS NOT A BUTTON

Experts say the concept is technically feasible, but it would not be a literal switch anyone could press. It would be a set of protocols each major lab creates and runs itself, then verified by independent organizations.



**California has only a
limited capacity to
control what a
company incorporated
in Delaware does with a
data center in Oregon
to serve a customer in
Colorado.**

— MAX HARMS, RESEARCHER, MACHINE
INTELLIGENCE RESEARCH INSTITUTE

NEWSOM IS PICKING A FIGHT WITH WASHINGTON

"The federal government's abject failure to create any form of meaningful AI oversight or accountability should alarm every American, especially when AI CEOs themselves are **begging for regulation**," Newsom said. He has called on Congress and President Trump to adopt California's framework nationally.

THE FEDERAL COMPLICATION

President Trump signed an executive order in December 2025 **blocking states from enforcing their own AI regulations**. That order also directed federal agencies to challenge state AI laws that conflict with national policy, complicating California's ability to act.

CALIFORNIA'S LAWS CARRY UNUSUAL WEIGHT

OpenAI, Anthropic, and many other frontier AI developers are headquartered in California. Rules written in Sacramento could become the effective working standard for the industry, regardless of what Congress eventually decides.

PREVIEW

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